

COPELAND v. TARRANT COUNTY

ADA Title II / § 504 Court-Access Infrastructure Case

Fifth Circuit emergency relief denied by divided panel; Judge Haynes would have granted temporary relief

EMERGENCY SCOTUS APPLICATION IN PREPARATION

THE QUESTION

Whether federal courts may decline to enforce ADA Title II / § 504 court-access infrastructure requirements when the public entity cannot identify the required accommodation pathway and the plaintiff seeks process-based relief rather than a ruling on state-court merits.

Related issue: what standard applies to ADA interference claims under 42 U.S.C. § 12203(b) in the Fifth Circuit.

§ 504 / FEDERAL FUNDING HOOK

Title II applies because courts and counties are public entities. § 504 adds a federal-funding hook where programs receive federal financial assistance.

The OAG Child Support Division operates through federally funded Title IV-D enforcement machinery, raising an enforcement-integrity question: whether federally funded enforcement may proceed on records generated through proceedings lacking a functioning disability-access pathway.

WHY IT MATTERS

- Tarrant County is Texas's third-largest county, with more than 2 million residents.
- Federal law has required public entities to maintain ADA Title II compliance infrastructure for decades, including self-evaluation, public notice, ADA coordination, and grievance procedures.
- Tarrant County stated it was unable to locate responsive records identifying a Title II coordinator, grievance procedure, self-evaluation/compliance audit, or court-user accommodation process for judicial proceedings.
- County officials have also stated that court-user accommodation issues are left to individual judges and are not the County's ADA responsibility.
- Fifth Circuit emergency relief was denied by a divided panel; Judge Haynes would have granted temporary relief.
- The requested relief is procedural: a functioning access pathway and written accommodation determinations before further inaccessible proceedings or enforcement actions continue.

TARRANT COUNTY DOCUMENTED WRITTEN RECORD

- **Apr. 1, 2026:** Assistant County Administrator stated court-proceeding accommodation requests are not within County ADA compliance, are left to judges, and the matter is considered closed.
- **Apr. 21, 2026:** Open Records Response CDA-2026-897 stated the County was unable to locate responsive Title II ADA records after contacting departments and individuals.
- **Apr. 30, 2026:** Tarrant County Criminal District Attorney's Office stated the County has no control over judicial accommodation decisions and did not view corrective action as required.
- **Post-notice issue:** after being placed on notice, Tarrant County continued to disclaim responsibility rather than identify or establish a court-user ADA pathway.

APPLICANT

- Kathryn "Katie" Copeland is a Texas-licensed attorney, pro se litigant, and author of *Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*, published by the ABA Commission on Disability Rights in 2026.
- SSA issued a fully favorable disability decision on Apr. 10, 2026, with established onset June 8, 2023, predating the relevant state-court proceedings. Applicant has documented neurological/cognitive disability affecting meaningful participation without accommodations.

CHILDREN'S INDEPENDENT HARM

The access failure does not affect only the disabled parent. Orders and enforcement actions generated without meaningful participation can impair children's relationship, stability, and access to their parent. This supports irreparable-harm and associational-discrimination analysis under Title II / § 504 without asking any federal court to decide custody merits.

RELIEF SOUGHT: PROCESS, NOT MERITS

Pause or condition further Tarrant County proceedings and enforcement actions requiring Applicant's participation until a functioning ADA Title II / § 504 pathway exists, including public notice, a designated coordinator, a grievance procedure, and written determinations on accommodation requests.

The requested relief is procedural, not substantive. It does not ask any court to decide custody, support, housing, or other state-law merits.

WHAT IS NEEDED

- Emergency appellate / SCOTUS triage
- Co-counsel, amicus, or referral support
- Disability-rights organizational review
- Research support on *Sprint*, *Younger*, Title II, § 504, and § 12203(b)
- Investigative review of Tarrant County's documented court-access gap

CONTACT

Kathryn "Katie" Copeland, J.D. Texas Bar No. 24086056
(817) 789-8498 | Katie@KatieCopeland.com

KatieCopeland.com | American Bar Association publication:

[*Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*](#), April 2, 2026.

Prepared as an outreach fact sheet. Source documents and court orders available on request.



PHIL SORRELLS
Criminal District Attorney
Tarrant County

April 30, 2026

Ms. Kathryn Copeland
Copeland Law
1137 S. Pine Street
Grapevine, Texas 76051

Via E-Mail

Re: Letter dated April 20, 2026 to the County Administrator

Ms. Copeland,

I am in receipt of your correspondence dated April 20, 2026, which was addressed to County Administrator Chandler Merritt. After reviewing this letter and the attached exhibits, I understand you have concerns regarding the provision of ADA accommodations during the course of your family court judicial proceedings.

First, I understand that you requested ADA accommodations from Tarrant County District Court Judges and were dissatisfied with their decisions. As the County communicated to you upon your initial request to the County for judicial ADA accommodations, the County does not have control over a particular state District Court Judge's decision when a litigant seeks ADA accommodations that would modify court proceedings. Such a decision relates to a judge's adjudicative responsibilities and is within a judge's sole discretion. Tarrant County, on the other hand, provides assistance for those with disabilities that prevent them from accessing and navigating the County's physical facilities, programs, services, and activities, whether in person or virtually. While I understand you are frustrated and feel the process is fragmented, your case took place in a state District Court that is located within, but not controlled by, Tarrant County. Thus, concerns with the state court ADA accommodation process are not properly presented to Tarrant County because the County cannot control or change the outcome of your legal proceedings.

Your letter also requests certain documents. It is my understanding that you submitted an open records request that mirrors your request for records in your April 20 correspondence, and

that the open records request was closed on or about April 21, 2026. Thus, you have received the records in the County's possession that are responsive to your request.

Finally, you expressed concerns with the County's Title II compliance. Tarrant County takes its obligations under Title II seriously and remains committed to ensuring all individuals, including those with disabilities, have access to the County. As your frustrations relate to judicial decisions and do not outline any issues accessing County facilities or programs, it does not appear that the County is required to take corrective action based on the allegations you presented.

Thank you for giving us an opportunity to review and address your concerns. If you have any additional questions regarding the County's ADA policies, please contact me directly.

Sincerely,

Phil Sorrells
Criminal District Attorney
Tarrant County, Texas

Katherine E. Owens

KATHERINE E. OWENS
Assistant Criminal District Attorney

KEO/psm

Re: Re: Tarrant County District Attorney's Office - Records Request CDA-2026-897 Completed

From Paul Nguyen (Tarrant County, TX) <TarrantCountyTX@request.justfoia.com>

To katie@copelandlawtexas.com

CC pknguyen@tarrantcountytexas.gov

Date Tuesday, April 21st, 2026 at 4:28 PM

Ms. Copeland,

Thank you for following up. We have reached out to various departments and individuals regarding the Title II ADA aspects of your request and unfortunately, we were still unable to locate any responsive information that you are seeking.

Tarrant County District Attorney's Office

401 W. Belknap

Fort Worth, Texas 76196

(817) 884-1233

openrecords@tarrantcountytexas.gov

On Mon, Apr 20, 2026 at 4:25 pm, Katie Copeland wrote:

Thank you. However, I was not referring to the employment aspect of ADA, but rather the Title II aspect of ADA, which applies to counties and courthouses (under the US Supreme Court case of Tennessee v Lane and the 5th Circuit opinion from Luke v Texas). For example, I have attached the City of Fort Worth's compliance documents.

For convenience, I have pasted my original request again below:

Request #CDA-2026-897

I request access to and copies of the following records:

1. ADA Title II Self- Evaluation (28 C.F.R. § 35.105) All records reflecting any self-evaluation conducted by Tarrant County and/or its courts in compliance with 28 C.F.R. § 35.105, including but not limited to: • The original self-evaluation required to be completed by January 26, 1993 • Any subsequent updates, revisions, or re-evaluations • All supporting materials associated with such evaluations
2. Required Components of the Self- Evaluation To the extent maintained, please include records showing: • Lists of individuals and organizations consulted (including disability advocacy groups) • Descriptions of areas examined and barriers identified • Descriptions of modifications made as a result of the evaluation
3. ADA Compliance Infrastructure Records sufficient to show: • The designation of any ADA Coordinator pursuant to 28 C.F.R. § 35.107 • Any ADA grievance procedures maintained by the County or its courts • Policies or procedures related to ADA Title II compliance in court operations
4. Record Retention and Availability • Any record retention policies applicable to ADA compliance documents, including self-evaluations • Any documentation explaining the absence, destruction, or unavailability of responsive records, if applicable _____

If there are no documents or individuals related to these request, please confirm.

Sincerely,

Kathryn "Katie" Copeland

Re: ADA Justice Issue

From Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov>

To katie@copelandlawtexas.com

Date Wednesday, April 1st, 2026 at 3:03 PM

The presiding Judge over each court is their own decision maker with regards to court proceedings. I am not aware of how each court handles their request once they get notified.

Since it is a court proceeding request and not falling under the County's ADA compliance the response and directing them to the court then considers the matter closed.



Travis Yarbrough

Assistant County Administrator

100 E Weatherford St. Suite 404

Fort Worth, TX 76196

Phone: 817-884-2643

Email: thyarbrough@tarrantcountytx.gov

From: Katie Copeland <katie@copelandlawtexas.com>

Sent: Monday, March 30, 2026 4:13 PM

To: Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov>

Subject: Re: ADA Justice Issue

EXTERNAL EMAIL ALERT! Think Before You Click!

Hi Mr. Yarbrough,

Thank you for your response.

This is related in part to my earlier request, but it also concerns an ongoing and active access issue in a current civil matter in the 141st District Court (Cause No. 141-370402-25).

The issue I am encountering is not limited to a single court, but appears to involve a broader gap in how ADA accommodation requests are received, routed, and resolved for court users at the county level.

In my current case, I have made repeated requests for accommodations necessary for meaningful participation due to documented cognitive limitations. However, there has been no clear ADA coordination pathway, no identified decision-maker, and no interactive process through which those requests are evaluated.

As a result, proceedings have continued while access issues remain unresolved.

At this point, I am trying to identify:

- who serves as the appropriate ADA decision-maker for court-user accommodations at the county level;

- how requests are supposed to be processed across courts; and
- how an interactive process is initiated and documented.

If this falls within your scope, I would appreciate your guidance. If not, I would be grateful if you could direct me to the appropriate individual responsible for ADA coordination in this context.

I appreciate your time and your help in clarifying this.

Best regards,

Kathryn "Katie" Copeland
(817) 789-8498

On Friday, March 27th, 2026 at 2:17 PM, Travis H. Yarbrough <thyarbrough@tarrantcountytx.gov> wrote:

Good afternoon Ms. Copeland,

I was given a message that you reached out to our office yesterday concerning an ADA question. I did find a request from you that went to Justice of the Peace court No. 3 earlier this year. Does this happen to be in relation to that request or something entirely different?



Travis Yarbrough

Assistant County Administrator

100 E Weatherford St. Suite 404

Fort Worth, TX 76196

Phone: 817-884-2643

Email: thyarbrough@tarrantcountytx.gov

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